

		something wrong to her. ... A plaintiff need not be aware of the specific 'facts' necessary to establish the claim [such as failure to test, failure to warn, failure to diagnose]; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.” (<i>Rose v. Fife</i> (1989) 207 Cal. App. 3d 760, 768–69.) As the statute of limitation ran out in March 2022, and as the FAC was not filed until 02/08/23, the addition of Defendants was after the limitation period. The demurrers are therefore proper. Finally, as Plaintiff has not shown with a reasonably probability that he can plead around the statute of limitations, leave to amend is not granted. (<i>San Mateo Union High Sch. Dist. v. Cnty. of San Mateo</i> (2013) 213 Cal. App. 4th 418, 441.) Both demurrers are, therefore, sustained. B) Motion to Strike Hatfield’s Motion to Strike is MOOT. Plaintiff filed a notice of non-opposition/stipulation indicating he agreed to strike out the language at issues in the SAC. (ROA #231.) Moving parties are to give notice of these rulings and to file proposed orders with the court.
4	30-2021-01233370 Nguyen vs. National General Premier Insurance Company	Off Calendar
5	30-2022-01242882 Taylor vs. General Motors LLC	Defendant General Motors LLC’s (“Defendant”) Motion for Summary Judgment or, alternative, for Summary Adjudication (“Motion”) is DENIED without prejudice. All of the evidence produced in support of this Motion was attached to the declaration of Cameron Major (“Major”). The only “authentication” Major provides regarding each of the eight documents produced in support of the Motion was that he had “personal knowledge of the facts set forth below and,

		if called to testify, could and would testify competently to them” and that the documents are “true and correct copies” of what they are purported to be. This is simply not sufficient to authenticate these documents. (Evid. Code § 1401(a); <i>Cont'l Baking Co. v. Katz</i> (1968) 68 Cal. 2d 512, 525–26.) Major’s declaration also shows a lack of personal knowledge regarding the authenticity of the documents. (Evid. Code § 702.) Major states that he has personal knowledge as he is Defendant’s counsel of record. (Reply, 4:14-17.) However, being Defendant’s counsel does not impart personal knowledge of the authenticity of records. For example, the Retail Installment Sales Contract (“Contract”) that purports to show the Vehicle was sold used is from Buena Park Honda. (Major Decl., Ex. A.) Buena Park Honda is not a party to this lawsuit, nor is it part of GM wherein GM or its counsel <i>might</i> have knowledge of the veracity of the document or be able to authenticate it. Plaintiff did not attached a copy of the Contract to the Complaint, and Defendant did not explain how it came by the document. There are no additional declarations by a custodian of records, evidence the documents were produced by Plaintiff in response to discovery requests, or any other form of authentication. For Major to have personal knowledge of the authenticity of the document, he would have had to been present at the time the Contract was entered into, which Major has not testified to. The same analysis applies to all of the other documents attached to Major’s declaration. As the documents have not been properly authenticated, Defendant has failed to produce evidence in support of the Motion. Without supporting evidence, Defendant has not met its initial burden under Civ. Proc. Code § 437c. The Motion is denied without prejudice. Plaintiffs objections: Sustained as to Nos. 1 – 7 (lack foundation, authentication, lacks personal knowledge). Defendant is ordered to give notice of this ruling.
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